

2686/2013 on 2 April, 2014

Author: Debangsu Basak

Bench: Debangsu Basak

02.04.2014

C.O. NO. 2686 OF 2013

Ms. Karabi Roy
For the petitioner
Ms. Pampa Dey (Dhabal)
For the opposite party

The present Section 24 of the Code of Civil Procedure petition was at the instance of the wife. The husband filed a petition under Section 9 of the Hindu Marriage Act being Matrimonial Suit No. 405 of 2013 on April 12, 2013 before the learned District Judge at Krishnanagar, Nadia. The petitioner was seeking transfer of Matrimonial Suit No. 103 of 2013 filed by the Opposite Party-husband in the learned Additional District Judge, 7th Court at Alipore to the learned District Judge, Krishnanagar, Nadia.

It was contended on behalf of the petitioner that the husband filed the Matrimonial Suit No. 103 of 2013 after receiving notice of filing of Matrimonial Suit No. 405 of 2013. The petition filed by the petitioner was on April 12, 2013 while the husband filed a petition on May 15, 2013. The petitioner prayed for analogous hearing of the two Matrimonial proceedings at Nadia.

On behalf of the opposite party-husband, it was contended that the wife left the matrimonial home after two months of marriage. The petitioner has taken only the ground of distance. The same can be remitted by transfer of both the proceedings at Sealdah.

Considering the respective submissions and materials on record, I find that the petitioner had instituted the Matrimonial Suit No. 405 of 2013 prior in point of time i.e., on April 12, 2013. Then Matrimonial Suit No. 103 of 2013 was filed on May 15, 2013. There was no application for transfer of Matrimonial Suit No. 405 of 2013.

In the fitness of things, it would be appropriate to transfer the case in one court to hear both the proceedings. Matrimonial Suit No. 405 of 2013 was a proceeding under Section 9 of the Hindu Marriage Act and Matrimonial Suit No. 103 of 201 was a proceeding under Section 13 thereof. In such circumstances, Matrimonial Suit No. 103 of 2013 pending before the learned Additional District Judge, 7th Court at Alipore is transferred to the learned District Judge, Krishnanagar, Nadia

where Matrimonial Suit No. 405 of 2013 is pending. The learned District Judge, Nadia is directed to hear and dispose of both the Matrimonial Suits analogously.

The learned District Judge, 7th Court, Alipore is directed to take expeditious steps for the purpose of transmitting the records of Matrimonial Suit no. 103 of 2013 to the learned District Judge, Nadia.

The learned District Judge, Nadia is requested to dispose of both the Matrimonial proceedings as expeditiously as possible.

The petitioner is at liberty to communicate this order to the learned District Judge, Nadia by Special Messenger at her own cost and such cost be put in within one week from date.

The revisional application is, thus, disposed of. There shall, however, be no order as to costs.

Let Urgent photostat certified copy of this order, if applied for, be given to the parties on priority basis.

(Debangsu Basak,J)